



Domain name registration agreement

Please read this agreement carefully, as it contains important information regarding your legal rights and remedies.

The English version of legal agreements and policies is considered as the only current and valid version of this document. Any translated version is provided for your convenience only, to facilitate reading and understanding of the English version. Any translated versions are not legally binding and cannot replace the English versions. In the event of disagreement or conflict, the English language legal agreements and policies shall prevail.

Domain name registration agreement



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1. OVERVIEW

This Domain Name Registration Agreement (this "Agreement") is entered into by and between Hostinger group entity, the details of which are indicated in the Hostinger's Terms of Service, ("Hostinger") and you, and is made effective as of the date of electronic acceptance. This Agreement sets forth the terms and conditions of your use of Hostinger's Domain Name Registration services (the "Domain Name Registration Services" or the "Services"). Your electronic acceptance of this Agreement signifies that you have read, understand, acknowledge and agree to be bound by this

Agreement, which incorporates by reference each of (i) Hostinger's [Universal Terms Of Service Agreement](#) ("UTOS"), (ii) all agreements, guidelines, policies, practices, procedures, registration requirements or operational standards of the top-level domain ("TLD") in which you register any domain ("Registry Policies"), and (iii) any plan limits, product disclaimers or other restrictions presented to you on the Domain Name Registration Services landing page of the Hostinger website (this "Site"). **To link to and review the Registry Policies for the TLD in which you wish to register a domain name, please click [here](#).**

The terms "we", "us" or "our" shall refer to Hostinger. The terms "you", "your", "User" or "customer" shall refer to any individual or entity who accepts this Agreement. Unless otherwise specified, nothing in this Agreement shall be deemed to confer any third-party rights or benefits. You acknowledge and agree that (i) Hostinger in its sole and absolute discretion, may change or modify this Agreement, and any policies or agreements which are incorporated herein, at any time, and such changes or modifications shall be effective immediately upon posting to this Site, and (ii) your use of this Site or the Services found at this Site after such changes or modifications have been made shall constitute your acceptance of this Agreement as last revised. If you do not agree to be bound by this Agreement as last revised, do not use (or continue to use) this Site or the Services found at this Site. In addition, Hostinger may occasionally notify you of changes or modifications to this Agreement by email. It is therefore very important that you keep your shopper account ("Shopper Account") information, including your email address, current. Hostinger assumes no liability or responsibility for your failure to receive an email notification if such failure results from an inaccurate or out-of-date email address.

Hostinger is an affiliate of Internet Corporation for Assigned Names and Numbers ("ICANN") accredited registrar. You acknowledge and agree that ICANN-accredited registrars are bound by an agreement with ICANN. You acknowledge and agree that Hostinger may modify this Agreement in order to comply with any agreements with ICANN, as well as any other terms and conditions set forth by (i) ICANN and/or (ii) the registry applicable to the TLD or country code top level domain ("ccTLD") in question. As used herein, the terms "registry", "Registry", "registry operator" or "Registry Operator" shall

refer to the registry applicable to the TLD or ccTLD in question. To identify the sponsoring registrar, click [here](#).

2. PROVISIONS SPECIFIC TO ALL REGISTRATIONS

Unless otherwise noted, the provisions below in this Section 2 are generally applicable to all TLDs that we offer. Special provisions specific to any TLD or ccTLD (those in addition to posted Registry Policies) are identified elsewhere below in this Agreement.

Registry Policies. You agree to be bound by all Registry Policies (defined above in this Agreement) applicable to your domain name registration (at any level). IT IS YOUR RESPONSIBILITY TO VISIT THE APPLICABLE TLD SITE AND READ AND REVIEW ALL APPLICABLE REGISTRY POLICIES PRIOR TO YOUR REGISTRATION IN THE TLD. REGISTRY POLICIES FOR EACH TLD CAN BE FOUND BY VISITING THE CORRESPONDING TLD LINK LISTED [HERE](#). Notwithstanding anything in this Agreement to the contrary, the Registry Operator of the TLD in which the domain name registration is made is and shall be an intended third party beneficiary of this Agreement. As such the parties to this agreement acknowledge and agree that the third party beneficiary rights of the Registry Operator have vested and that the Registry Operator has relied on its third party beneficiary rights under this Agreement in agreeing to Hostinger being an affiliate of a registrar for the respective TLD. The third party beneficiary rights of the Registry Operator will survive any termination of this Agreement.

Domain activation. After you purchase a domain name you have to activate it within 96 hours by filling in the required information in hPanel. By buying a domain you confirm your understanding that as long as the domain is not activated, a right to the domain name is not reserved to you and anybody else is able to register the same domain name. The final registration of the domain name will be made on the name of the registrant who will be the first to activate the domain name by filling in the required information. **Please be informed that** i) in case you fail to activate the domain within 96 hours and somebody else activates the domain name before you, or ii) in case you fail to activate the domain within 12 months (regardless of whether or not someone else will activate it during that time), the domain name will be removed from your account and

the refund will not be applicable. In the event somebody registers the same domain name within 96 hours from your purchase, you will be eligible for a refund as per [Refund Policy](#).

Registration requirements. To the extent any TLD or ccTLD requires you meet eligibility (e.g., residency for .EU, etc.), validation (e.g., DNS validation) or other authentication requirements as a condition to registering a domain name in the TLD, you agree that by submitting an application or registering or renewing your domain name, you represent and warrant that: (a) all information provided to register or renew the domain name (including all supporting documents, if any) is true, complete and correct, and is not misleading in any way, and the application is made in good faith; (b) you meet, and will continue to meet, the eligibility criteria prescribed in the Registry Policies for the applicable TLD for the duration of the domain name registration; (c) you have not previously submitted an application for the domain name with another registrar using the same eligibility criteria, and the other registrar has rejected the application (if applicable); (d) you acknowledge and agree that even if the domain name is accepted for registration, your entitlement to register the domain name may be challenged by others who claim to have an entitlement to the domain name; and (e) you acknowledge and agree that the Registry or the registrar can cancel the registration of the domain name if any of the warranties required are found to be untrue, incomplete, incorrect or misleading.

Ownership. You acknowledge and agree that registration of a domain name does not create any proprietary right for you, the registrar, or any other person in the name used as a domain name or the domain name registration and that the entry of a domain name in the Registry shall not be construed as evidence or ownership of the domain name registered as a domain name. You shall not in any way transfer or purport to transfer a proprietary right in any domain name registration or grant or purport to grant as security or in any other manner encumber or purport to encumber a domain name registration.

ICANN requirements. You agree to comply with the ICANN requirements, standards, policies, procedures, and practices for which each applicable Registry Operator has monitoring

responsibility in accordance with the Registry Agreement between ICANN and itself or any other arrangement with ICANN. For more information please check [ICANN Educational Information](#).

Indemnification of Registry. You agree to indemnify, defend and hold harmless (within 30 days of demand) the Registry Operator and Registry Service Provider and their subcontractors, subsidiaries, affiliates, divisions, shareholders, directors, officers, employees, accountants, attorneys, insurers, agents, predecessors, successors and assigns, from and against any and all claims, demands, damages, losses, costs, expenses, causes of action or other liabilities of any kind, whether known or unknown, including reasonable legal and attorney's fees and expenses, in any way arising out of, relating to, or otherwise in connection with the your domain name registration, including, without limitation, the use, registration, extension, renewal, deletion, and/or transfer thereof and/or the violation of any applicable terms or conditions governing the registration. You shall not enter into any settlement or compromise of any such indemnifiable claim without Registrar's or Registry Operator's prior written consent, which consent shall not be unreasonably withheld, and you agree that these indemnification obligations shall survive the termination or expiration of the Agreement for any reason. IN NO EVENT SHALL THE REGISTRY OPERATOR BE LIABLE TO YOU OR ANY OTHER PERSON FOR ANY DIRECT, INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFIT OR GOODWILL, FOR ANY MATTER, WHETHER SUCH LIABILITY IS ASSERTED ON THE BASIS OF CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF WARRANTIES, EITHER EXPRESS OR IMPLIED, ANY BREACH OF THIS AGREEMENT OR ITS INCORPORATED AGREEMENTS AND POLICIES YOUR INABILITY TO USE THE DOMAIN NAME, YOUR LOSS OF DATA OR FILES OR OTHERWISE, EVEN IF THE REGISTRY OPERATOR HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

Third party beneficiary. Notwithstanding anything in this Agreement to the contrary, the Registry Operator for any TLD in which you register a domain name is and shall be an intended third party beneficiary of this Agreement. As such the parties to this agreement acknowledge and agree that the third party beneficiary rights of the Registry Operator have vested and that the Registry Operator has relied on its third party beneficiary rights under this Agreement in agreeing to Hostinger being an affiliate of the registrar for the TLD.

Third party beneficiary rights of the Registry Operator shall survive any termination of this Agreement.

Variable and non-uniform pricing. You acknowledge, understand and agree that certain domain names in certain TLDs are established by Registry Policies to be variably priced (i.e., standard v. premium names) and/or may have non-uniform renewal registration pricing (such that the Fee for a domain name registration renewal may differ from other domain names in the same TLD, e.g., renewal registration for one domain may be \$20.00 and \$10.00 for a different domain name).

Restriction on availability of privacy or proxy. You acknowledge and agree that, as dictated by the Registry Policies, for certain TLDs you may not be permitted to purchase private TLD registrations. In such case, you must register for any and all TLD registrations using your personal information, which information you represent and warrant is current, accurate and complete.

3. FEES AND PAYMENTS

(A) GENERAL TERMS, INCLUDING AUTOMATIC RENEWAL TERMS

You agree to pay any and all prices and fees due for Services purchased or obtained at this Site at the time you order the Services. Hostinger expressly reserves the right to change or modify its prices and fees at any time, and such changes or modifications shall be posted online at this Site and effective immediately without need for further notice to you. If you have purchased or obtained Services for a period of months or years, changes or modifications in prices and fees shall be effective when the Services in question come up for renewal as further described below. For all terms and conditions relating to fees, payment, refund and billing, etc. applicable to the Services offered under the scope of this Agreement, please refer to the "Fees and Payments" section of our [UTOS](#).

(B) DOMAIN NAME RENEWAL TERMS

When you register a domain name, you will have two renewal options: (i) "Automatic Renewal", and (ii) "Manual Renewal":

1. **Automatic renewal.** Automatic renewal is the default setting. Hostinger will automatically renew, for a period equivalent to the length of your original domain name registration, any domain name that is up for renewal and will take payment from the Payment Method you have on file with Hostinger at Hostinger's then current rates.
2. **Manual renewal.** If the automatic renewal is disabled for your domain, you have the responsibility of logging into the Domain Manager portion of your members area for that domain name and manually implementing the renewal by the expiration date (should you in fact want the domain name to be renewed). If you fail to manually implement the renewal before the expiration date, the domain name will expire and you will no longer have use of that name.

All renewals will be subject to the terms of this Agreement, as it may be amended from time to time, and you acknowledge and agree to be bound by the terms of this Agreement (as amended) for all renewed domains. Domain name renewals will be non-refundable. If for any reason Hostinger is not able to take the payment from the Payment Method you have on file, and you fail to respond to our notices, your domain name registration will expire. It is your responsibility to keep your Payment Method information current, which includes the expiration date if you are using a credit card.

For ccTLD **.dk** you must renew no later than 41 days prior to the expiration date, or your domain name will be placed in non-renewal status. For ccTLD **.cz** you must renew no later than 33 days, **.de** – 5 days(*), **.ch** and **.fr** – 3 days prior to the expiration date or your domain name will be placed in Redemption Grace Period (RGP) status. When the domain name is in Redemption Grace Period status, you can renew the domain name only by contacting Hostinger via support ticket and requesting that the domain name be restored and renewed. You cannot renew the domain name in RGP status through your Domain Manager. If you fail to manually implement the renewal before the expiration date, the domain name will be cancelled and you will no longer have use of that name. (*)A .DE domain name registered after 2016-07-18 will Expire on the 5th last day of the Expiry month, upon Registration, Renewal or Transfer. For example, if yourdomain.de is registered on January 1, 2011, it's Expiry Date becomes January 27, 2012 as the Registration term is 1

year and the 5th last day of January 2012 is January 27. .DE domain names should be Renewed prior to their Expiry date. Upon Expiry of a .DE domain name: 1) you will no longer be able to manage your .DE domain name with LogicBoxes, and 2) your .DE domain name will be transferred directly under the .DE Registry (DENIC) and you will receive instructions from DENIC for managing your domain name with them.

You agree that Hostinger will not be responsible for cancelled domain names that you fail to renew, either automatically or manually in the timeframes indicated in this Agreement. In any case, if you fail to renew your domain name in a timely fashion, additional charges may apply. If you signed up for privacy services, or any other similar service, with your domain name registration, these services will automatically be renewed when your domain name registration is up for renewal, and you will incur the applicable additional renewal fee unless you cancel in advance.

If you fail to renew your domain name in the timeframes indicated in this Agreement, your domain name will be placed on Hold and flagged for deletion. Unless otherwise indicated in this Agreement, you will then have a 30-day Redemption Grace Period during which you may pay Hostinger a Redemption fee and redeem your domain name. The redemption fee of the most domains currently is \$80.00 USD + Renewal Fee + VAT (.com.co 180 USD + Renewal Fee + VAT, .frl 150 USD + Renewal Fee + VAT, .store 120 USD + Renewal Fee + VAT, .ws 120 USD + Renewal Fee + VAT) and is subject to change under the terms of this Agreement. If you do not redeem your domain name prior to the end of the Registry's Redemption Grace Period the Registry will release your name and it will become available for registration on a first-come-first-served basis. For certain ccTLDs (.ru, .dk, .hu, .nu, .pl and .se) there is no Redemption Grace Period.

Redemption Grace Periods vary for different ccTLDs. Please refer to the specific terms for the applicable TLD. In the event there is a conflict between the provisions of this paragraph and the ccTLD terms, the ccTLD terms shall control.

For .com domain names, whose registrar is Hosting Concepts B.V. (Openprovider), Realtime Register B.V., Gransy, s.r.o., INWX GMBH, Name SRS AB, Metaregistrar BV (you can always check your domain name registrar information in [WHOIS Lookup](#)), you will have a 10-

days Renewal Grace Period calculated from the domain expiration date, during which you may renew your domain name at no extra cost (for a standard fee). If you fail to implement the renewal before the end of indicated period, the domain name will be deleted and you also run the risk of having your domain name being acquired by a third party. If you wish to restore a .com domain after the 10 days Renewal Grace Period, please contact our Customer Support to check if there are any possibilities for your domain name to be restored.

(C) FREE PRODUCT TERMS

In the event you are provided with free products with the registration of a domain name, you acknowledge and agree that such free products will only be available with a valid purchase and may be terminated in the event the domain name is deleted or cancelled. For free domain names, you acknowledge and agree that: (i) you shall register the domain name within 12 months from the date free domain name was provided, otherwise free domain name will elapse, and (ii) you may not change the account associated with such free domain for the first five (5) days after registration. In the event a free domain name is offered with the registration of another domain and if the paid domain name registered fails, then we may, in its sole discretion, either delete the registration of the free domain or refund the difference between the amount paid and the value of the free domain. Failed registrations associated with promotional offers may result in the deletion of the free or discounted item or an adjustment between the registered domain price and the value of the discounted item, in our sole discretion.

4. TERM OF AGREEMENT; TRANSFERS; DOMAIN TASTING

The term of this Agreement shall continue in full force and effect as long as you have any domain name registered through Hostinger. You agree that you will not transfer any domain name registered through Hostinger to another domain name registrar during the first sixty (60) days after its initial registration date. You further agree that you will not engage in "domain tasting" by using the refundable period in which you may choose to cancel a domain name and get a full refund of the registration fee as a vehicle to test the marketability or viability of a domain name. If Hostinger determines (which determination shall be made by Hostinger in its sole and absolute

discretion) that you have been engaging in "domain tasting", then Hostinger reserves the right to (a) charge you a small fee (which fee shall be deducted from any refund issued) or (b) refuse your cancellation/refund request altogether. Hostinger will not charge you a fee if Hostinger cancels your domain name during the five (5) day grace period due to fraud or other activity outside of your control. You agree that Hostinger shall not be bound by (i) any representations made by third parties who you may use to purchase services from Hostinger or (ii) any statements of a general nature, which may be posted on Hostinger's website or contained in Hostinger's promotional materials.

5. UP TO DATE INFORMATION; USE OF INFORMATION AND EXPIRATION

You agree to notify Hostinger within five (5) business days when any of the information you provided as part of the application and/or registration process changes. It is your responsibility to keep this information in a current and accurate status. Failure by you, for whatever reason, to provide Hostinger with accurate and reliable information on an initial and continual basis, shall be considered to be a material breach of this Agreement and a basis for suspension and/or cancellation of the domain name. Failure by you, for whatever reason, to respond within five (5) business days to any inquiries made by Hostinger to determine the validity of information provided by you, shall also be considered to be a material breach of this Agreement and a basis for suspension and/or cancellation of the domain name. You agree to retain a copy for your record of the receipt for purchase of your domain name. You agree that for each domain name registered by you, the following contact data is required: postal address, email address and a telephone number for the Registered Name Holder and, if different from the Registered Name Holder, the same contact information for, a technical contact, an administrative contact and a billing contact. You acknowledge and agree that domain name registration requires that this contact information, in whole or in part, be shared with the registry operator, for their use, copying, distribution, publication, modification and other processing for (among other uses in accordance with our Privacy Policy) the purpose of administration of the domain name registration, which may require such information be transferred back and forth across international borders, to and from the U.S. to the

EU, for example. As required by ICANN, this information must also be made publicly available by means of Whois, and that the registry operator may also be required to make this information publicly available by Whois. Both Hostinger and the registry operator may be required to archive this information with a third-party escrow service. You hereby consent and give permission for all such requirements and disclosures. Further, you represent and warrant that, if you are providing information about a third party, you have notified the third party of the disclosure and the purpose for the disclosure and you have obtained the third party's consent to such disclosure. Registrar will not process data in a way that is incompatible with this Agreement. Registrar will take reasonable precautions to protect data from loss or misuse. You agree that for each domain name registered by you the following information will be made publicly available in the Whois directory as determined by ICANN Policy and may be sold in bulk as set forth in the ICANN agreement:

1. The domain name;
2. Your name and postal address;
3. The name, email address, postal address, voice and fax numbers for technical and administrative contacts;
4. The Internet protocol numbers for the primary and secondary name servers;
5. The corresponding names of the name servers; and
6. The original date of registration and expiration date.
7. Name of primary name server and secondary name server.
8. Identity of the registrar.

You agree that, to the extent permitted by ICANN, Hostinger may make use of the publicly available information you provided during the registration process. If you engage in the reselling of domain names you agree to provide any individuals whose personal information you've obtained, information about the possible uses of their personal information pursuant to ICANN policy. You also agree to obtain consent, and evidence of consent, from those individuals for such use of the personal information they provide. In order for us to comply with any current or future rules and policies for domain name systems including any rules or policies established by any provincial or federal government or by other organization having control or authority to establish rules or policies, you hereby grant to

us the right to disclose to third parties through an interactive publicly accessible registration database the following information that you are required to provide when applying for a domain name:

1. The domain or sub-domain name(s) registered by you;
2. Your organization name, type and postal address;
3. The name(s), position(s), postal address(es), e-mail address(es), voice telephone number(s) and where available the fax number(s) of the technical and administrative contacts for your domain or sub-domain name(s);
4. The full hostnames and Internet protocol (IP) addresses of at least two (2) name server hosts (one primary and at least one secondary) for your domain or sub-domain name. If a host has more than one (1) IP address, use a comma-separated list;
5. The corresponding names of those name servers;
6. The original creation date of the registration; and
7. The expiration date of the registration.

We may be required to make this information available in bulk form to third parties.

6. DISPUTE RESOLUTION POLICY

You agree to be bound by our current Dispute Resolution Policy. This policy is incorporated herein and made a part of this Agreement. You can view the [Uniform Domain Name Dispute Resolution Policy](#) online. You agree that Hostinger may from time to time modify its Dispute Resolution Policy. Hostinger will post any changes to its Dispute Resolution Policy at least thirty (30) days before they become effective. You agree that by maintaining your domain name registrations with Hostinger after the updated policy becomes effective that you agree to the Dispute Resolution policy as amended. You agree to review Hostinger's website periodically to determine if changes have been made to the Dispute Resolution Policy. If you cancel or terminate your Services with Hostinger as a result of the modified Dispute Resolution policy, no fees will be refunded to you. You also agree to submit to proceedings commenced under ICANN's Uniform Rapid Suspension System, if applicable. You agree that if a dispute arises as a result of one (1) or more domain names you have registered using Hostinger you will indemnify, defend and hold Hostinger harmless as provided for in

this Agreement. You also agree that if Hostinger is notified that a complaint has been filed with a governmental, administrative or judicial body, regarding a domain name registered by you using Hostinger that Hostinger in its sole discretion, may take whatever action Hostinger deems necessary regarding further modification, assignment of and/or control of the domain name deemed necessary to comply with the actions or requirements of the governmental, administrative or judicial body until such time as the dispute is settled. In this event you agree to hold Hostinger harmless for any action taken by Hostinger. You agree to submit, without prejudice to other potentially applicable jurisdictions, to the jurisdiction of the courts (1) of your domicile, (2) where registrar is located or (3) where the registry operator is located (e.g., UK for .EU, etc.). In the case of .ca domain names, you agree that, if your use of the service or the registration of a .ca domain name is challenged by a third party, you will be subject to the provisions specified by CIRA in their dispute resolution policy, in effect at the time of the dispute.

7. TRANSFER OF DOMAIN NAMES; RESALE PRACTICES

If you transfer any domain name, you agree to provide the information required by, and to abide by, the procedures and conditions set forth in our [Domain Name Transfer Agreement](#). You may view the latest version of our Domain Name Transfer Agreement online. In the event you are purchasing a domain name on behalf of a third party, you agree to inform any customer of yours, who may be acquiring a domain name through you using Hostinger's registration services, that they are in fact registering their domain name through Hostinger and that Hostinger is an affiliate of accredited registrar with ICANN. You agree not to represent that you are an ICANN-accredited registrar or that you are in any way providing superior access to the ICANN Domain Name Registry. You also agree not to use the ICANN trademark logo in any of your promotional materials including your website. You agree to obtain each of your customers' acceptances to the then current version of this Agreement, and to retain evidence of their acceptance for a period of not less than three (3) years. Should you require that your customers accept additional terms and conditions that are not required by Hostinger you agree that such additional terms and conditions shall not conflict with this Agreement and the policies and procedures adopted by ICANN. You agree that Hostinger is not lending you

access to its registrar connections or its registry access, nor will you be deemed to be a registrar in your own right. Furthermore, you agree you will not attempt to gain access to Hostinger's registrar connections or registry access. You agree to provide complete, accurate and current data for each registrant to be added to a registry in accordance with ICANN requirements for inclusion in the Whois database. You agree to provide your customers with adequate customer support, and to maintain contact with them with regard to providing a medium for them to communicate changes in the information they provided as part of the domain name registration process. Upon receiving corrected or updated information you will, within five (5) business days, provide such information to Hostinger so Hostinger may update its registration records. You will retain copies of all communications between you and your customers and will upon request provide Hostinger copies of same.

8. YOUR OBLIGATIONS; SUSPENSION OF SERVICES; BREACH OF AGREEMENT

You represent and warrant to the best of your knowledge that, neither the registration of the domain nor the manner it is directly or indirectly used, infringes the legal rights of any third party. You will comply with all applicable laws, including, but not limited to those relating to privacy, data collection, consumer protection, fair lending, debt collection, organic farming, and disclosure of data and financial disclosures. If you collect and maintain sensitive health and financial data, you must implement reasonable and appropriate security measures commensurate with the offering of those services, as defined by applicable law. You represent that you possess any necessary authorization, charter, license, and/or other related credential for participation in the sector associated with the associated registry tld string. You will report any material changes to the validity of your authorization, charter, license, and/or other related credential. You will indemnify and hold harmless the registrar and registry operator, and their directors, officers, employees and agents, from and against any and all claims, damages, liabilities, costs and expenses (including reasonable legal fees and expenses) arising out of or related to the domain name registration. This obligation shall survive expiration or termination of this Agreement

or the domain name registration. You agree that, in addition to other events set forth in this Agreement:

You acknowledge and agree that Hostinger and registry reserve the right to deny, cancel or transfer any registration or transaction, or place any domain name(s) on registry lock, hold or similar status, as either deems necessary, in the unlimited and sole discretion of either Hostinger or the registry: (i) to comply with specifications adopted by any industry group generally recognized as authoritative with respect to the Internet (e.g., RFCs), (ii) to correct mistakes made by registry or any registrar in connection with a domain name registration, (iii) for the non-payment of fees to registry, (iv) to protect the integrity and stability of the registry, (v) to comply with any applicable court orders, laws, government rules or requirements, requests of law enforcement, or any dispute resolution process, (vi) to comply with any applicable ICANN rules or regulations, including without limitation, the registry agreement, (vii) to avoid any liability, civil or criminal, on the part of registry operator, as well as its affiliates, subsidiaries, officers, directors, and employees, (viii) per the terms of this Agreement, (ix) following an occurrence of any of the prohibited activities described in Section 9 below, or (x) during the resolution of a dispute. You agree that your failure to comply completely with the terms and conditions of this Agreement and any Hostinger rule or policy may be considered by Hostinger to be a material breach of this Agreement and Hostinger may provide you with notice of such breach either in writing or electronically (i.e. email). In the event you do not provide Hostinger with material evidence that you have not breached your obligations to Hostinger within ten (10) business days, Hostinger may terminate its relationship with you and take any remedial action available to Hostinger under the applicable laws. Such remedial action may be implemented without notice to you and may include, but is not limited to, cancelling the registration of any of your domain names and discontinuing any services provided by Hostinger to you. No fees will be refunded to you should your Services be cancelled or terminated because of a breach. Hostinger's failure to act upon or notify you of any event, which may constitute a breach, shall not relieve you from or excuse you of the fact that you have committed a breach.

9. RESTRICTION OF SERVICES; RIGHT OF REFUSAL

You acknowledge and agree that you are prohibited from distributing malware, abusively operating botnets, phishing, piracy, trademark or copyright infringement, fraudulent or deceptive practices, counterfeiting or otherwise engaging in activity contrary to applicable law, and you acknowledge and agree that the consequences for such activities include suspension of the domain name. If you are hosting your domain name system ("DNS") on Hostinger's servers, or are using our systems to forward a domain name, URL, or otherwise to a system or site hosted elsewhere, or if you have your domain name registered with Hostinger you are responsible for ensuring there is no excessive overloading on Hostinger's servers. You may not use Hostinger's servers and your domain name as a source, intermediary, reply to address, or destination address for mail bombs, Internet packet flooding, packet corruption, or other abusive attack. Server hacking or other perpetration of security breaches is prohibited. You agree that Hostinger reserves the right to deactivate your domain name from its DNS if Hostinger deems it is the recipient of activities caused by your site that threaten the stability of its network. You agree that Hostinger in its sole discretion and without liability to you, may refuse to accept the registration of any domain name. Hostinger also may in its sole discretion and without liability to you delete the registration of any domain name during the first thirty (30) days after registration has taken place. Hostinger may also cancel the registration of a domain name, after thirty (30) days, if that name is being used, as determined by Hostinger in its sole discretion, in association with spam or morally objectionable activities.

In the event Hostinger refuses a registration or deletes an existing registration during the first thirty (30) days after registration, you will receive a refund of any fees paid to Hostinger in connection with the registration either being cancelled or refused. In the event Hostinger deletes the registration of a domain name being used in association with spam or morally objectionable activities, no refund will be issued.

10. DOMAIN ADD-ONS

DNS management. Total DNS is a complete Domain Name System ("DNS") tool that allows you to manage your DNS and keep your website and web-based applications available and performing

reliably. The service is provided “as is”, “as available”, and “with all faults”, and we assume no liability or responsibility regarding the same.

In addition, you specifically acknowledge and agree that we shall have no liability or responsibility for any:

1. Service interruptions caused by periodic maintenance, repairs or replacements of the Global Nameserver Infrastructure (defined below) that we may undertake from time to time;
2. Service interruptions caused by you from custom scripting, coding, programming or configurations;
3. Service interruptions caused by you from the installation of third-party applications;
4. Service interruptions that do not prevent visitors from accessing your website, but merely affect your ability to make changes to your website, including but not limited to, changes via mechanisms such as file transfer protocol (“FTP”) and email; or
5. Service interruptions beyond the reasonable control of us or that are not reasonably foreseeable by us, including, but not limited to, power outages, interruption or failure of telecommunication or digital transmission links, hostile network attacks, network congestion or other failures.

Subject to the provisions of Force Majeure below, we offer a service uptime guarantee (“Service Uptime Guarantee”) for paid services of 99.9% availability (defined below). You shall receive service credits for any Outage (defined below) of the service covered by the Service Uptime Guarantee. The service credits shall be applied as extensions to the terms of the affected Service. The Service Uptime Guarantee shall become effective fourteen (14) days after your purchase of the Service covered by the Service Uptime Guarantee to allow both parties time to properly configure and test the Service.

Definitions. For the purposes of the Service Uptime Guarantee, the following definitions shall apply:

1. “Global Nameserver Infrastructure”: The group of systems (servers, hardware, and associated software) that are responsible for delivering the Services. The Global

Nameserver Infrastructure does not include web-based user interfaces, zone transfer mechanisms, update systems, or other customer-accessible data access or manipulation methods.

2. "99.9% availability": A guarantee that the Global Nameserver Infrastructure shall be available to respond to DNS queries 99.9% of the time.
3. "Outage": A period in which the Global Nameserver Infrastructure did not maintain 99.9% availability.

Exclusions. For the purposes of the Service Uptime Guarantee, downtime due to the following events shall not be considered an Outage:

1. Service interruptions caused by Regularly Scheduled Maintenance, which shall be defined as any maintenance performed on the Global Nameserver Infrastructure of which customer is notified twenty-four (24) hours in advance. Email notice of Regularly Scheduled Maintenance shall be provided to the customer's designated email address;
2. Service interruptions caused by you from custom scripting, coding, programming or configurations; Service interruptions caused by you from the installation of third-party applications;
3. Service interruptions that do not prevent visitors from accessing your website, but merely affect your ability to make changes to your website, including but not limited to, changes via mechanisms such as file transfer protocol ("FTP") and email; or
4. Service interruptions beyond the reasonable control of us or that are not reasonably foreseeable by us, including, but not limited to, power outages, interruption or failure of telecommunication or digital transmission links, hostile network attacks, network congestion or other failures.

We, in our sole and absolute discretion, shall determine whether an event shall be considered an Outage.

Remedies. For the purposes of the Service Uptime Guarantee, when the customer becomes aware of an Outage, the customer shall open a ticket with our technical support services within five (5) calendar days of the Outage. If we determine that an Outage did occur, then

the customer shall receive a service credit in the amount of two (2) months for any affected Services. The service credit shall be applied as an extension to the term of the affected Services. A customer's Account shall not be credited more than once per month under the Service Uptime Guarantee. To qualify for a service credit, you must have a current and valid subscription to the Services affected, and must have an Account in good standing with us. Service credits will not apply to any charges or Services other than the Services for which the Service Uptime Guarantee was not met. Customers with subscriptions for more than one Service will not receive credits for unaffected Services. The remedies set forth herein shall be the sole and exclusive remedies if we do not meet the Service Uptime Guarantee. In the event either party is unable to carry out its material obligations under this Agreement by reason of Force Majeure those obligations will be suspended during the continuance of the Force Majeure, provided the cause of the Force Majeure is remedied as quickly as practicable. The term "Force Majeure" means any event caused by occurrences beyond a party's reasonable control, including, but not limited to, acts of God, fire or flood, war, terrorism, governmental regulations, policies or actions enacted or taken subsequent to execution of this Agreement, or any labor, telecommunications or other utility shortage, outage or curtailment. We prohibit the running of a public recursive DNS service on any server. All recursive DNS servers must be secured to allow only internal network access or a limited set of IP addresses. We actively scan for the presence of public recursive DNS services and reserves the right to remove any servers from the network that violate this restriction.

Domain Shield service. Domain Shield is an optional, fee-based add-on premium domain protection service offered for certain domain names, subject to availability. Domain Shield applies on a per-domain basis. By purchasing Domain Shield service, you agree that the following will apply to the protected domain name:

(i) upon expiration of the domain name, the standard renewal period will be extended to 40 days (during this period domain name can be renewed manually at no extra cost (for a standard fee)). Throughout this period, domain nameservers and DNS zones will remain active.

(ii) mandatory one-time password (“OTP”) verification will be required before completing certain high-risk actions, which includes domain name transfer (including EPP code generation), nameserver change, privacy protection changes and Registrant contact updates. The OTP cannot be bypassed and will be sent to the Registrant's email address or, in certain cases at our discretion, phone number. You are responsible for keeping your contact details up to date.

Domain Shield does not guarantee domain recovery in all circumstances. You remain responsible for paying renewal fees on time and ensuring your domain name is duly renewed.

11. PROVISIONS SPECIFIC TO .BIZ REGISTRATIONS

Domain Name Dispute Policy. If you reserved or registered a .BIZ domain name through us, in addition to our Dispute Resolution Policy, you hereby acknowledge that you have read and understood and agree to be bound by the terms and conditions of the [Restrictions Dispute Resolution Policy](#) applicable to the .biz TLD. The RDRP sets forth the terms under which any allegation that a domain name is not used primarily for business or commercial purposes shall be enforced on a case-by-case basis by an independent ICANN-accredited dispute provider. Registry Operator will not review, monitor, or otherwise verify that any particular domain name is being used primarily for business or commercial purposes or that a domain name is being used in compliance with the SUDRP or UDRP processes. One Year Registration. If you are registering a .BIZ domain name and you elect to take advantage of special pricing applicable to one-year registrations, we will automatically renew your domain name for an additional one-year period at the end of the first year term by taking payment from the Payment Method you have on file, unless you notify us that you do not wish to renew. You will be notified and given the opportunity to accept or decline the one-year renewal prior to your domain name expiration date. In the event you decide not to renew your one-year .BIZ domain name for a second year, your domain name registration will automatically revert back to us and we will gain full rights of registration to such domain name. You agree that if you delete or transfer your .BIZ domain name during the first year, you will automatically be charged the second year renewal fees.

12. PROVISIONS SPECIFIC TO .INFO REGISTRATIONS

One Year Registration. If you are registering a .INFO domain name and you elect to take advantage of special pricing applicable to one-year registrations, we will automatically renew your domain name for an additional one-year period at the end of the first year term by taking payment from the Payment Method you have on file, unless you notify us that you do not wish to renew. You will be notified and given the opportunity to accept or decline the one-year renewal prior to your domain name expiration date. In the event you decide not to renew your one-year .INFO domain name for a second year, your domain name registration will automatically revert back to us and we will gain full rights of registration to such domain name. You agree that if you delete or transfer your .INFO domain name during the first year, you will automatically be charged the second year renewal fees.

13. PROVISIONS SPECIFIC TO .NAME REGISTRATIONS

Defensive Registration. A Defensive Registration is a registration designed for the protection of trademarks and service marks and may be granted to prevent a third party from registering a variation of a trademark or the exact trademark. If the name you wish to register is subject to a Defensive Registration, you have three (3) options: (i) you may register a variation of the name, (ii) you may challenge the Defensive Registration under the [Eligibility Requirements Dispute Resolution Policy](#), or (iii) you may request Consent from the Defensive Registrant. You can request Consent by contacting the Defensive Registrant listed in the GNR Whois database and requesting consent to register the .NAME domain name. If the Defensive Registrant grants consent, they must confirm in writing that they grant consent. If the Defensive Registrant does not grant consent, you may wish to challenge the Defensive Registration under the ERDRP. Acceptable Use Policy. You agree to be bound by the .NAME Acceptable Use Policy, which is hereby incorporated by reference. Among other limitations, this policy prohibits you from using your .NAME Email to engage in Spamming activities. You will be limited to a maximum of five hundred (500) messages sent from your .NAME at a time.

14. COUNTRY CODE TOP LEVEL DOMAINS

You represent and warrant that you meet the eligibility requirements of each ccTLD you apply for. You further agree to be bound by any registry rules, policies, and agreements for that particular ccTLD. These may include, but are not limited to, agreeing to indemnify the ccTLD provider, limiting the liability of the ccTLD provider, and requirements that any disputes be resolved under that particular country's laws.

15. PROVISIONS SPECIFIC TO .CN REGISTRATIONS

.CN is a restricted TLD – applications are subject to both a domain name check and real name verification as required by the People's Republic of China. Registrations in .CN are therefore subject to the following additional terms:

Verification, Registration and Activation. If a domain name is not permitted to be registered by the Chinese government, as determined by us, the Registry Operator or a 3rd party provider utilized for such services and determinations, in either party's discretion, the application for registration will not be successful. In such event, the name will be deleted and you will be eligible for a refund as further described below. If permitted, then the Registration may proceed. However, a .CN domain name may not be activated (i.e., it will not resolve in the Internet) unless and until you have submitted (via the process described during registration) valid documents required of us to perform real name verification. The following are acceptable forms of documents for the purpose of verification: valid resident ID, temporary resident ID, business license or organization code certificate from China, a valid driver's license, passport or business license from Hong Kong, Singapore or Taiwan OR a valid driver's license or passport from Australia, Canada, or the United States. Documents submitted to us are used solely for the purpose of real name verification, and are stored in the U.S. and are otherwise subject to our Privacy Policy. Refunds. Refunds for .CN Registrations will only be allowed where (i) registration of the applied for domain name is not permitted by the Chinese government; or (ii) you notify us of your intent to cancel for any reason within the first five (5) days after the Registration (i.e., after it is deemed permissible by the Chinese government). For the avoidance of doubt, refunds will not be permitted under any circumstances after five (5) days from the date of Registration, including, for example, in

the event real name verification is not successful or if the Chinese government determines after Registration that the domain name should not have been registered (and directs us to delete).

16. PROVISIONS SPECIFIC TO OTHER REGISTRATIONS

For ccTLDs not mentioned in this agreement, another registration agreement applies.

1. Your ability to use any of the services provided by Hostinger is subject to cancellation or suspension in the event there is an unresolved breach of this Agreement and/or suspension or cancellation is required by any policy now in effect or adopted later by ICANN;
2. Your registration of any domain names shall be subject to suspension, cancellation or transfer pursuant to any ICANN adopted specification or policy, or pursuant to any Hostinger procedure not inconsistent with an ICANN adopted specification or policy (a) to correct mistakes by Hostinger or the registry operator in registering any domain name; or (b) for the resolution of disputes concerning any domain name.
3. The transmission of unsolicited email (Spam); and
4. Repetitive, high volume inquiries into any of the services provided by Hostinger (i.e. domain name availability, etc.).
5. Activities prohibited by the laws of the EU and/or foreign territories in which you conduct business;
6. Activities designed to encourage unlawful behavior by others, such as hate crimes, terrorism and child pornography; and
7. Activities designed to harm or use unethically minors in any way.
8. Service interruptions caused by periodic maintenance, repairs or replacements of the Global Nameserver Infrastructure (defined below) that we may undertake from time to time;
9. Service interruptions caused by you from custom scripting, coding, programming or configurations;
10. Service interruptions caused by you from the installation of third-party applications;

11. Service interruptions that do not prevent visitors from accessing your website, but merely affect your ability to make changes to your website, including but not limited to, changes via mechanisms such as file transfer protocol (“FTP”) and email; or
12. Service interruptions beyond the reasonable control of us or that are not reasonably foreseeable by us, including, but not limited to, power outages, interruption or failure of telecommunication or digital transmission links, hostile network attacks, network congestion or other failures.
13. “Global Nameserver Infrastructure”: The group of systems (servers, hardware, and associated software) that are responsible for delivering the Services. The Global Nameserver Infrastructure does not include web-based user interfaces, zone transfer mechanisms, update systems, or other customer-accessible data access or manipulation methods.
14. “99.9% availability”: A guarantee that the Global Nameserver Infrastructure shall be available to respond to DNS queries 99.9% of the time.
15. “Outage”: A period in which the Global Nameserver Infrastructure did not maintain 99.9% availability.
16. Service interruptions caused by “Regularly Scheduled Maintenance”;

Hostinger > Domain name registration agreement

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